FILE DO NOT MAIL

2012 AUG 27 PM 3:41

Bernard J. Youngblood
Wayne County Register of Deeds
August 27, 2012 03:41 PM
Inst:2012345683 SHD Pages:7
Liber:50089 Page:14

365283F03 Cadez - FC J

SHERIFF'S DEED ON MORTGAGE SALE

This Indenture Made this 16th day of August, A.D. 2012, between, Felicia Mack, a Deputy Sheriff in and for Wayne County, Michigan, whose address is 4747 Woodward Ave Detroit, Michigan 48201-1307, party of the first part, and Residential Credit Solutions, Inc., whose address is 4282 N. Freeway, Ft. Worth, TX 76137, party of the second part (hereinafter called the grantee).

WITNESSETH, That Whereas a certain mortgage made by Daniel Cadez, Jr. and Joanna Cadez, husband and wife, original mortgagor(s), to Mortgage Electronic Registration Systems, Inc., Mortgagee, dated October 16, 2003, and recorded on December 17, 2003 in Liber 39792 on Page 1346, and assigned by mesne assignments to Residential Credit Solutions, Inc. as assignee as documented by an assignment dated June 7, 2012 recorded on June 15, 2012 in Liber 49899 on Page 1378, in Wayne county records, Michigan and

WHEREAS, said mortgage contained a power of sale which has become operative by reason of a default in the condition of said mortgage, and

WHEREAS, no suit or proceedings at law or in equity have been instituted to recover the debt secured by said mortgage or any part thereof, and

WHEREAS, by virtue of said power of sale, and pursuant to the statute of the State of Michigan in such case made and provided, a notice was duly published and a copy thereof was duly posted in a conspicuous place upon the premises described in said mortgage, that the said premises, or some part of them, would be sold at 11:00 AM on the 16th day of August, A.D. 2012, at public vendue, that being the place of holding the Circuit Court for Wayne County where the premises are situated and

WHEREAS, pursuant to said notice I did, at on the day last aforesaid, expose for sale at public vendue the said lands and tenements hereinafter described, and on such sale did strike off and sell the said lands and tenements to the grantee for the sum of One Hundred Eighteen Thousand Two Hundred Ninety-Two and 23/100 Dollars ($118,292.23), that being the highest bid therefore and the grantee being the highest bidder, and

WHEREAS, said lands and tenements are situated in the City of Allen Park, Wayne County, Michigan, more particularly described in exhibit A, attached and commonly known as:
17000 Roslyn Ave
Property Tax Parcel ID 30-003-02-0177-000
This property may be located within the vicinity of farmland or a farm operation. Generally, accepted agricultural and management practices, which may generate noise, dust, odors, and other associated conditions, may be used and are protected by the Michigan right to farm act.

Now, this Indenture Witnesseth, That I, the Deputy Sheriff aforesaid, by virtue of and pursuant to the statute in such case made and provided, and in consideration of the sum of money so paid as aforesaid, have granted, conveyed, bargained and sold, and by this deed do grant, convey, bargain and sell unto the grantee, its successors and assigns, forever, all the estate, right, title and interest, which the said Mortgagor(s) had in said land and tenements and every part thereof, on the 16th day of October A.D. 2003, that being the date of said mortgage, or at any time thereafter, to have and to hold the said lands and tenements and every part thereof to the said grantee, its successors and assigns forever, to their sole and only use, benefit and behoof forever, as fully and absolutely as I, the Deputy Sheriff aforesaid, under the authority aforesaid, might, could or ought to sell the same.

IN WITNESS WHEREOF, I have hereunto set my hand and seal, the date and year first above written.

Felicia MACK

Deputy Sheriff in and for the County of Wayne

STATE OF MICHIGAN
COUNTY OF WAYNE

On this 16th day of August, A.D. 2012, before me, a Notary Public in and for said County of Wayne came Felicia Mack, a Deputy Sheriff of said County, known to me to be the individual described in and who executed the above conveyance, and who acknowledged that he executed the same to be his free act and deed as such Deputy Sheriff.

Notary Public, Wayne County, Michigan
My commission expires:
Acting in the county of Wayne

THIS INSTRUMENT IS EXEMPT FROM COUNTY TRANSFER TAX PURSUANT TO 12 U.S.C. 1723a(c) and MCL 207.505(c).

THIS INSTRUMENT IS EXEMPT FROM STATE TRANSFER TAX PURSUANT TO 12 U.S.C. 1723a(c); MCL 207.526(c); and MCL 207.526(v).

Fannie Mae (R&) #1702361953

Notary Public, Wayne County, Michigan
Acting in the County of Wayne
Appointment Expires on 11/15/2014

Team J - Daniel Cadez

Notice Of Mortgage Foreclosure Sale
THIS FIRM IS A DEBT COLLECTOR ATTEMPTING TO COLLECT A DEBT. ANY INFORMATION WE OBTAIN WILL BE USED FOR THAT PURPOSE. PLEASE CONTACT OUR OFFICE AT THE NUMBER BELOW IF YOU ARE IN ACTIVE MILITARY DUTY.
ATTN PURCHASERS: This sale may be rescinded by the foreclosing mortgagee. In that event, your damages, if any, shall be limited solely to the return of the bid amount tendered at sale, plus interest.
MORTGAGE SALE - Default has been made in the conditions of a mortgage made by Daniel Cadez, Jr. and Joanna Cadez, husband and wife, original mortgagor(s), to Mortgage Electronic Registration Systems, Inc., Mortgagee, dated October 16, 2003, and recorded on December 17, 2003 in Liber 39792 on Page 1346, and assigned by mesne assignments to Residential Credit Solutions, Inc. as assignee as documented by an assignment, in Wayne county records, Michigan, on which mortgage there is claimed to be due at the date hereof the sum of One Hundred Sixty-Eight Thousand Four Hundred Eighty-Five and 70/100 Dollars ($168,485.70).
Under the power of sale contained in said mortgage and the statute in such case made and provided, notice is hereby given that said mortgage will be foreclosed by a sale of the mortgaged premises, or some part of them, at public vendue, at the place of holding the circuit court within Wayne County, at 11:00 AM, on August 16, 2012.
Said premises are situated in City of Allen Park, Wayne County, Michigan, and are described as: Lot 177 Outer Drive Estate Subdivision as recorded in Liber 85, Pages 10 and 11 of Plats, Wayne County Records.
The redemption period shall be 6 months from the date of such sale, unless determined abandoned in accordance with MCLA 600.3241a, in which case the redemption period shall be 30 days from the date of such sale.
If the property is sold at foreclosure sale under Chapter 32 of the Revised Judicature Act of 1961, pursuant to MCL 600.3278 the borrower will be held responsible to the person who buys the property at the mortgage foreclosure sale or to the mortgage holder for damaging the property during the redemption period.
Dated: July 18, 2012
For more information, please call:
FC J (248) 593-1311
Trott & Trott, P.C.
Attorneys For Servicer
31440 Northwestern Highway, Suite 200
Farmington Hills, Michigan 48334-2525
File #365283F03
(07-18)(08-08)

AFFIDAVIT OF PUBLICATION

(Affidavit of Publisher)

STATE OF MICHIGAN,
ss.
COUNTY OF OAKLAND

The undersigned, an employee of the publisher of Detroit Legal News, having knowledge of the facts, being duly sworn deposes and says that a notice, a true copy of which is annexed hereto, was published in Detroit Legal News a newspaper circulated in Wayne County on July 18, July 25, August 1, August 8, 2012 A.D.

Cindy C. Lawler

Subscribed and sworn before me on this 8th day of August 2012 A.D.

Jennifer Dado

Notary Public Oakland County, Michigan. My commission expires: January 25, 2019 Acting in Oakland County, Michigan.

FNMA

Attorney:	Trott & Trott P.C. - Trott & Trott P.C. (team j) Wayne
AttorneyFile#:	365283F03
Notice#:	1085516

Team J - Daniel Cadez

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Attorneys For Servicer
31440 Northwestern Highway, Suite 200
Farmington Hills, Michigan 48334-2525
File #365283F03
(07-18)(08-08)

EVIDENCE OF SALE

(Affidavit of Posting)

STATE OF MICHIGAN
ss.
COUNTY OF OAKLAND

Ken Bosley being duly sworn, deposes that on the 24th day of July, 2012 A.D, he/she posted a notice, a true copy of which is annexed hereto, in a conspicuous place upon the premises described in said notice by attaching the same in a secure manner to the front door.

Ken Bosley

Subscribed and sworn before me on this 27th day of July 2012 A.D.

Deborah L. Elick

Notary Public Wayne County, Michigan. My commission expires: November 19, 2013 . Acting in OAKLAND County, Michigan.

CIRCLE IF Vacant
Multi-Unit Upper Unit Lower Unit
Multi-Addr Unit 1 Unit 2 Unit A Unit B
Condo Mobile/Manufactured Home No Dwelling

Attorney Office: Trott & Trott P.C. (team j) Wayne
Attorney File# 365283F03040500
Notice ID# 1085516

Cadez, Daniel T&T #365283F03

NON-MILITARY AFFIDAVIT
STATE OF MICHIGAN
SS.
COUNTY OF OAKLAND

The undersigned, being first duly sworn, deposes and says that upon investigation she/he is informed and believes that no borrower(s) are currently in active military service of the United States.

Terese McDermott

Signed and sworn to before me in Oakland County, Michigan, on this 13 day of August, 2012 by Terese McDermott.

Anita C. Keith, Notary public
State of Michigan, County of Oakland
My commission expires August 19, 2017
Acting in the County of Oakland

12-7253

ORIGINAL

EVIDENCE OF SALE (Affidavit of Auctioneer)
STATE OF MICHIGAN
SS.
COUNTY OF WAYNE

Felicia Mack

, being duly sworn, deposes and says that he is a Deputy Sheriff of said Wayne; that he acted as Auctioneer, and made the sale as described in the annexed Deed pursuant to the annexed printed notice: that said sale was opened at 11:00 AM on the 16th day of August, A.D. 2012, at the In Courtroom 1607, Wayne County Circuit Court Tower in the Coleman A. Young Municipal Center in Detroit, Michigan, that being the place of holding the Circuit Court in said Wayne County; that the highest bid for the lands and tenements therein described was One Hundred Eighteen Thousand Two Hundred Ninety-Two and 23/100 Dollars dollars $118,292.23 made by Residential Credit Solutions, Inc.; that said sale was in all respects open and fair; and that he did strike off and sell lands and tenements to said bidders, which purchased the said lands and tenements fairly, and in good faith, as deponent verily believes.

Felicia Mack

Deputy Sheriff in and for Wayne County, Michigan

Signed and sworn to before me in Wayne County, Michigan, on this 16th day of August, A.D. 2012 Laura Dyament

Notary Public, Wayne County, Michigan
My Commission Expires:
Acting in the county of Wayne

LAURA DYAMENT
Notary Public
Appointed in Macomb County
Acting in Wayne County
Appointment Expires on 11/19/2014

I DO HEREBY CERTIFY that the last day to redeem is February 16, 2013, after which the within Sheriff's Deed will become operative, unless determined abandoned in accordance with MCLA 600.3241a, or unless redeemed according to the law, in such case made and provided.

Felicia Mack

Deputy Sheriff in and for Wayne County, Michigan

Prepared By:
Terese McDermott (P71090)
Trott & Trott, P.C.
31440 Northwestern Highway, Suite 200
Farmington Hills, MI 48334-2525
T & T # 365283F03

ATTN REGISTER OF DEEDS: Please send all Redemption notifications and funds collected in your office to Residential Credit Solutions, Inc. c/o Trott & Trott, P.C., Post-Sale Unit, 31440 Northwestern Highway, Suite 200, Farmington Hills, MI 48334-2525.

ATTN PURCHASERS: This sale may be rescinded by the foreclosing mortgagee. In that event, your damages, if any, shall be limited solely to the return of the bid amount tendered at sale, plus interest. Please be advised that all 3rd party bidders are responsible for preparing and recording the Sheriff's Deed. TROTT & TROTT, P.C. Hereby expressly disclaims all liability relating to the foreclosure, preparation and recording of the Sheriff Deed.

AFFIDAVIT OF MCL 600.3205 NOTICE

STATE OF MICHIGAN)
COUNTY OF OAKLAND) SS.

NOW COMES Terese McDermott, who, first being sworn, deposes and says:

I am an attorney employed by Trott & Trott, P.C, and am duly authorized to execute this Affidavit on its behalf.

That I have reviewed the business records of Trott & Trott, P.C. and based on my review of those records, a written notice dated June 14, 2012 was served in the manner necessary according to MCL 600.3205a(3);

That said notice includes: (a) the reason for default and the amount due and owing; (b) the contact information for the mortgage holder, the mortgage servicer, or any agent designated by the mortgage holder or mortgage servicer; and (c) a statement of the borrowers' rights, all according to MCL 600.3205a(1);

That said notice includes a list of housing counselors as required by MCL 600.3205a(2); and

That the time for a housing counselor to notify the person designated under MCL 600.3205a(1)(c) of a request by the borrower(s) has expired without a request for a meeting.

FURTHER DEPONENT SAYETH NOT.

Terese McDermott

Attorney for Residential Credit Solutions, Inc.
Trott & Trott, P.C.
31440 Northwestern Highway, Suite 200
Farmington Hills, MI 48334-2525

Signed and sworn to before me in Oakland County, Michigan, on 8/13/2012

by Terese McDermott, Attorney for Residential Credit Solutions, Inc.

Anita C. Keith, Notary public
State of Michigan, County of Oakland
My commission expires August 19, 2017
Acting in the County of Oakland

T&T # 365283F03 Cadez, Daniel

AFFIDAVIT OF PURCHASER

The Undersigned, being duly sworn, states as follows:

1. I am an employee of Trott & Trott, P.C. and am authorized as counsel to submit this Affidavit Of Purchaser. I have knowledge of the facts stated herein and am competent to testify concerning such facts regarding a foreclosure sale scheduled for August 16, 2012 with respect to certain real property (the "Property") commonly known as 17000 Roslyn Ave.

2. **This affidavit may only be recorded and used by Residential Credit Solutions, Inc. in the event it is the successful purchaser of the property on August 16, 2012. No other purchaser may utilize this affidavit.**

3. The last date the Property may be redeemed is February 16, 2013. ANY REDEEMING PARTY SHOULD NOTE THAT THIS DATE MAY CHANGE AS SET FORTH IN SUBSEQUENT AFFIDAVITS OR AS PROVIDED BY APPLICABLE LAW.

4. The amount necessary to redeem the Property is $118,292.23 (One Hundred Eighteen Thousand Two Hundred Ninety-Two and 23/100 Dollars), plus interest at a per diem rate of $10.53 (Ten and 53/100 Dollars) from the date of sale to the date of redemption, plus any additional amounts that may be added pursuant to MCLA §600.3240(4). ANY REDEEMING PARTY SHOULD NOTE THAT THIS AMOUNT MAY INCREASE to include amounts paid by Residential Credit Solutions, Inc. for taxes, amounts necessary to redeem senior liens, condominium assessments, homeowner association assessments, community association assessments, insurance premiums, or any other amounts as provided by MCLA §600.3240(4), as well as interest thereon at the interest rate specified in the mortgage from the date of payment to the date of redemption.

5. Residential Credit Solutions, Inc. has designated Trott & Trott, P.C. as its designee responsible to assist an appropriate person redeeming the Property in computing the exact amount required to redeem the Property and to receive redemption funds. If you choose to utilize this assistance, contact Trott & Trott, P.C. at **RedemptionFigures@trottlaw.com** or by phone at (248) 593-1308. Pursuant to statute, Trott & Trott, P.C. will charge a fee of $150.00 (One Hundred Fifty And 00/100 Dollars) if you opt to use this assistance.

FURTHER DEPONENT SAYETH NOT.

Terese McDermott ( )
Attorney For Residential Credit Solutions, Inc.
Trott & Trott, P.C.
31440 Northwestern Highway, Suite 200
Farmington Hills, MI 48334-2525

Signed and sworn to before me in Oakland County, Michigan, on 8/13/2012 by Terese McDermott, Attorney for Residential Credit Solutions, Inc..

Anita C. Keith, Notary public
State of Michigan, County of Oakland
My commission expires August 19, 2017
Acting in the County of Oakland

T&T #365283F03 Daniel Cadez and Joanna Cadez, Mortgagor(s).

365283F03 Cadez - FC J

Fannie Mae (RC) #1702361953

Exhibit A - Property Description

Lot 177 Outer Drive Estate Subdivision as recorded in Liber 85, Pages 10 and 11 of Plats, Wayne County Records.